

April 17, 2026
Dept. 9
Tentative Rulings

5.	25CV2768	DUTTA v. TESLA
Motion for Preliminary Injunction		

Plaintiff filed a Petition for Court Appointment of an Arbitrator or, in the alternative, for a Preliminary Injunction. Defendant agrees that the Court should follow the procedures of Code of Civil Procedure (“CCP”) §1281.6 to appoint a new arbitrator. Therefore, the Court will proceed under CCP § 1281.6 and it is unnecessary to address Plaintiff’s request for a preliminary injunction.

Under § 1281.6, “When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration.”

The Court hereby orders Defendant to obtain from AAA a list of arbitrators to present to the Court at this hearing. If this cannot be accomplished prior to the hearing, then the April 17, 2025, hearing will be used to select a new hearing date or timeline for compliance. The Court will use the list from AAA to nominate five people, and if the parties do not agree on an arbitrator within five days, the Court shall pick the Arbitrator.

TENTATIVE RULING #5: APPEARANCES ARE REQUIRED ON FRIDAY, APRIL 17, 2026, AT 8:30 AM IN DEPARTMENT NINE.